CAUSE NO. D-1-GN-22-001827

TREY DOBSON	§	**IN THE DISTRICT COURT OF**
Plaintiff,	§	
	§	
v.	§	
	§	**201ST JUDICIAL DISTRICT**
STEPHEN REBOLLEDO, LAST MILE TRANSPORTATION SYSTEMS, LLC AND AMAZON.COM SERVICES, LLC	§	
	§	
	§	
Defendants.	§	**TRAVIS COUNTY, TEXAS**

DEFENDANT AMAZON.COM SERVICES, LLC'S MOTION TO DISMISS

TO THE HONORABLE JUDGE OF SAID COURT:

Pursuant to Texas Rule of Civil Procedure 91a, Defendant Amazon.com Services, LLC (hereafter "Defendant Amazon"), files its Motion to Dismiss Trey Dobson's (hereinafter "Plaintiff") claims asserted in Plaintiff's Second Amended Petition against Defendant Amazon.

I.
SUMMARY

1. On February 2, 2023, Plaintiff Trey Dobson filed his Second Amended Petition naming Defendant Amazon as a party to this litigation. In his Second Amended Petition, Plaintiff has asserted a personal injury claim against Defendant Amazon for injuries Plaintiff allegedly sustained in a motor vehicle collision that occurred "on or about September 15, 2020 on Menchaca Road, in Austin, Texas County, Texas."[1] Due to the two-year statute of limitations on personal injury claims in Texas, Plaintiff's deadline to file his petition asserting claims against Defendant Amazon was on September 15, 2022. Plaintiff did not file his amended petition until almost five months after the statute ran. As such, Plaintiff's claims against Defendant Amazon are barred by Texas' statute of limitations and must be dismissed, with prejudice.

[1]See Exhibit A: Plaintiff's Second Amended Petition, at 5.1.

II.
LEGAL ARGUMENT AND AUTHORITY

2. The statute of limitations for personal injury claims in Texas provides that "a person must bring suit for…personal injury…not later than two years after the day the cause of action accrues." Tex. Civ. Prac. & Rem. §16.003. None of the limited exceptions to the general rule regarding statute of limitations in personal injury claims are applicable to Plaintiff's Second Amended Petition.

3. Plaintiff's Second Amended Petition was filed on February 2, 2023.[2] This petition added Amazon.com Services, LLC, as a defendant to Plaintiff's personal injury lawsuit. Plaintiff's Second Amended Petition alleges that "on or about September 15, 2020 on Menchaca Road, in Austin, Texas County, Texas, a vehicle operated by Defendant Stephen Rebolledo and owned by Last Mile Transportation Systems, LLC collided with a vehicle in which Plaintiff was a passenger."[3] Plaintiff alleges that as a result of the subject collision, he suffered damages of "physical pain, mental anguish, loss of earnings or earning capacity, disfigurement, physical and mental impairment, and reasonable expenses for necessary health care…resulting from the injuries sustained in the occurrence in question."[4]

4. Plaintiff had until September 15, 2022, to file his personal injury lawsuit against Defendant Amazon. Tex. Civ. Prac. & Rem. §16.003. Plaintiff's Second Amended Petition, adding Defendant Amazon to this litigation, was filed on February 2, 2023, and is therefore untimely by 140 days. The time for Plaintiff to file a petition asserting his claims against Defendant Amazon has passed.

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[2] *Id.*

[3] *Id.*, at 5.1.

[4] *Id.*, at 7.3.

5. Plaintiff cannot claim that he was unaware of Defendant Amazon's possible connection to the collision before the end of the limitations period. In fact, Plaintiff has known since September 15, 2020 that Defendant Amazon had some relationship to the collision, as Plaintiff produced a photograph of the vehicle Defendant Rebolledo was operating at the time of the subject collision during the course of discovery that was conducted prior to Defendant Amazon being added to this litigation.[5] This photographs was taken on the day of the subject collision made the basis of this lawsuit and shows van Defendant Rebolledo was operating had an Amazon logo on it.[6] While Defendant Amazon vehemently denies Plaintiff's claims against it, there is no doubt that Plaintiff has known since the subject incident occurred that Defendant Amazon may have had some connection to his claim.

[5]See Exhibit B: Photograph of Vehicles at Scene, previously produced by Plaintiff in this case on June 15, 2022, in Initial Disclosures as PX0004.

[6]See Exhibit B: Photograph of Vehicles at Scene.

III.
CONCLUSION

6. The subject motor vehicle collision giving rise to Plaintiff's personal injury claim against Defendant Amazon occurred on September 15, 2020. Per the applicable statute of limitations, Plaintiff had until September 15, 2022 to file his personal injury lawsuit against Defendant Amazon. Plaintiff knew on the day of the subject collision that Defendant Amazon had some connection to the underlying incident made the basis of this suit and yet waited until after the statute of limitations passed to assert a claim against Defendant Amazon. Plaintiff's personal injury lawsuit against Defendant Amazon was untimely filed on February 2, 2023. As a result, Plaintiff's claims against Defendant Amazon are barred by Texas' statute of limitations for personal injury claims. Plaintiff's claims against Defendant Amazon must be dismissed, with prejudice.

Respectfully submitted,

CHAMBERLAIN ♦ MCHANEY

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CERTIFICATE OF CONFERENCE

I certify that counsel has conferred with all parties about the date, time, and format of the setting.

/s/ David E. Chamberlain
David E. Chamberlain

CERTIFICATE OF SERVICE

I certify that on April 14, 2023, a true and correct copy of the foregoing document was served in accordance with Texas Rule of Civil Procedure 21a, by service on all counsel of record pursuant to the Texas Rules of Civil Procedure, on the following counsel of record or parties:

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